

answer to the rejection of another (*h*); and the plaintiff, if he read the answer in proof of the trust, must at the same

(*h*) *Hampton v. Spencer*, 2 Vern. 288; *Nab v. Nab*, 10 Mod. 404.

Mo. 130. A. conveyed to father without consideration by absolute deed, and then with latter's knowledge but without his consent agreed that the property should be held in trust by a creditor, no trust against the father or his heirs. *Bartlett v. Bartlett*, 14 Gray, 277. For benefit of A. for a homestead for his life, and for B. after said A.'s death, valid. *O'Donnell v. Smith*, 142 Mass. 505. Executors gave deed to trustees, who reconveyed to executors, who again conveyed, title good. *Chesman v. Cummings*, 142 Mass. 65; *Loring v. Eliot*, 16 Gray, 568; *Smith v. Harrington*, 4 Allen, 566. That interpretation will be adopted which seems most nearly to carry out the manifest intention. *Dexter v. Episcopal City Mission*, 134 Mass. 394. To hold for the sole and separate use of a married woman as if a feme sole, and to the use of her issue, her husband can in no way control it without trustee's consent. *Pannill v. Coles*, 81 Va. 380. Construction of trust deeds. *North American Land Co.'s Est.* 83 Pa. St. 493; *Thomas v. Crawford*, 57 Ga. 211; *Badgett v. Keating*, 31 Ark. 400.

*Delivery of deed.*—If once delivered, it is not impaired by evidence of oral reservation. *Wallace v. Berdell*, 97 N. Y. 13. Deed never delivered to trustee, but deposited for safe keeping with him, with understanding that it should be returned and cancelled on demand and with the consent of the beneficiary, which was done, held a good defence. *Burroughs v. De Couts*, 70 Cal. 361. B. executed deed to K., and B.'s agent had it recorded. There was no pecuniary consideration, and K. knew nothing about it. B. afterwards told K., who orally assented to it, and it began to operate from that time. *Kingsbury v. Burnside*, 58 Ill. 310; 11 Am. Rep. 67. A voluntary deed was delivered to the trustee named, who spoke to *cestui que trust* about it and promised to have it recorded; the trustee afterwards returned it, and it was destroyed; held a good delivery. *Stone v. King*, 7 R. I. 358; 84 Am. Dec. 557. It is a sufficient delivery if draughtsman informs the bargainee of its existence and he consents to act as trustee under it. *Green v. Kornegay*, 4 Jones Law, 66; 67 Am. Dec. 261.

*Enforcing trusts.*—Must first exhaust remedies at law. *Moffatt v. Tuttle*, 35 Minn. 301. May enforce trust to pay debt created by deed from debtor to surety. *Jennings v. National Bank of Athens*, 74 Ga. 782. State trusts are not enforced except where fraudulently concealed by the trustee. *Badger v. Badger*, 2 Wall. 87. If a trust is created by the owner of property, trustee may enforce it anywhere, if by law, within its jurisdiction. *Curtis v. Smith*, 601 Barb. 9. A trust arising from an illegal transaction may be enforced in favor of an innocent party. *Miller v. Davidson*, 3 Gilm. 518; 44 Am. Dec. 715. A trust will be enforced if created and declared, though there be no valuable consideration; but a mere executory trust will not. *Lane v. Ewing*, 31 Mo. 75; 77 Am. Dec. 633. Unless perfectly created, will not be enforced without inquiring into its origin and consideration. *Badgley v. Votrain*, 68 Ill. 25; 19 Am. Rep. 541. If one come into possession of the trust property with notice, the trust will be enforced against him, just as if he were the original trustee.

*By whom enforced.*—May be by the *cestui que trust*; *Howard v. Gilbert*, 39 Ala. 726; one trustee against another; *Faulkner v. Thompson*, 14 Ark. 478; by attorney-general against eleemosynary institution; *Chambers v. Baptist Ed. Soc.* 1 B. Mon. 215; by any beneficiary having an interest in the use;